

Medford Square District Zoning Amendment

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Amend Section 94-2.1. Division into districts.

Add the following row to the table of zoning districts, as shown below:

Full Name	Classification	Abbreviation
Medford Square District	Residential, Office, and Commercial	MSD

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Amend Section 94-3.2 c (Table A) by incorporating the following table into the existing table and renumbering as appropriate:

	Medford Square District					
	MS-1	MS-2	MS-3	MS-4	PC⁵	LC
A. RESIDENTIAL USES						
1. Detached one-unit dwelling	N	N	N	N	2 per Dwelling Unit	NA
2. Attached one-unit dwelling (Rowhouse)	N	N	N	N	1.5 per Dwelling Unit ⁴	NA
3. Detached two-unit dwelling (Duplex)	N	N	N	N	1.5 per Dwelling Unit ⁴	NA
4. Three-unit dwelling, detached	N	N	N	N	1.5 per Dwelling Unit ⁴	NA
5. Multiplex (4-6 units)	Y	Y	N	N	1.5 per Dwelling Unit ⁴	NA
6. Multiple dwelling (>6 units)	Y	Y	Y	Y	1.5 per Dwelling Unit ⁴	NA
7. Dormitory, fraternity or sorority house	N	N	N	N	1 per 4 beds	1/15,000 s.f.
8. Lodging or boarding house	CDB	CDB	CDB	CDB	1 per Guestroom	1/15,000 s.f.
9. Senior housing facility	CDB	CDB	CDB	CDB	1 per 2 Units	1/15,000 s.f.
10. Co-housing	CDB	CDB	CDB	CDB	1.5 per Dwelling Unit ⁴	NA

	Medford Square District					
	MS-1	MS-2	MS-3	MS-4	PC ⁵	LC
11. Congregate Housing	N	N	N	N	1.5 per Dwelling Unit ⁴	NA
12. Townhouse	N	N	N	N	1.5 per Dwelling Unit ⁴	NA
13. Historic Conversion	Y	Y	Y	Y	1.5 per Dwelling Unit ⁴	NA
B. COMMUNITY USES						
1. Museum	Y	Y	Y	Y	1 per 750 s.f.	1/15,000 s.f.
2. Community center or adult recreational center, nonprofit	Y	Y	Y	Y	1 per 750 s.f.	1/15,000 s.f.
3. Use of land or structures for religious purposes on land owned or leased by a religious sect or denomination	Y	Y	Y	Y	1 per 140 s.f.	NA
4. Use of land or structures for educational purposes on land owned or leased by the Commonwealth or any of its agencies, subdivisions or bodies politic or by a religious sect or denomination or by a nonprofit educational corporation	Y	Y	Y	Y	1 per 750 s.f.	1/15,000 s.f.
5. Child care center or school aged child care program	Y	Y	Y	Y	1 per 750 s.f.	1/15,000 s.f.
6. Public fire station	Y	Y	Y	Y	1 per 2 employees	1/50,000 s.f.
7. Public library	Y	Y	Y	Y	1 per 750 s.f.	1/15,000 s.f.

	Medford Square District					
	MS-1	MS-2	MS-3	MS-4	PC ⁵	LC
8. Other municipal uses	Y	Y	Y	Y	NA	NA
9. Essential services	CDB	CDB	CDB	CDB	NA	NA
10. Hospital, nonprofit	N	N	N	N	1 per 4 beds	1/15,000 s.f.
11. Other Institution	CDB	CDB	CDB	CDB	1 per 750 s.f.	1/15,000 s.f.
C. OPEN RECREATIONAL AND AGRICULTURAL USES						
1. Private open recreational uses, available to the public	Y	Y	Y	Y	1 per 750 s.f.	1/15,000 s.f.
2. Public open recreational uses	Y	Y	Y	Y	1 per 750 s.f.	NA
3. Exempt agriculture	Y	Y	Y	Y	NA	NA
4. Production of crops, horticulture and floriculture	N	N	N	N	NA	1/15,000 s.f.
5. Keeping and raising of livestock, including animal stable or kennel	N	N	N	N	NA	1/15,000 s.f.
D. COMMERCIAL USES						
1. Private entertainment or recreation facility excluding adult uses	Y	Y	Y	Y	1 per 350 s.f.	1/15,000 s.f.
2. Public entertainment or recreation facility	Y	Y	Y	Y	1 per 350 s.f.	1/15,000 s.f.
3. Private nonprofit members only recreational club or lodge	Y	Y	Y	Y	1 per 750 s.f.	1/15,000 s.f.
4. Trade, professional, or other school operated for profit	Y	Y	Y	Y	1 per 750 s.f.	1/15,000 s.f.
5. Hotel	Y	Y	Y	Y	1 per Guestroom	1/15,000 s.f.

	Medford Square District					
	MS-1	MS-2	MS-3	MS-4	PC ⁵	LC
6. Mortuary, undertaking or funeral establishment	N	N	N	N	1 per 140 s.f.	1/15,000 s.f.
7. Adult use	N	N	N	N	1 per 350 s.f.	1/15,000 s.f.
8. Brewery or taproom ¹	Y	Y	Y	Y	1 per 350 s.f.	1/15,000 s.f.
9. Artisanal Fabrication.	Y	Y	Y	Y	1 per 350 s.f.	1/15,000 s.f.
10. Artistic/Creative Production.	Y	Y	Y	Y	1 per 350 s.f.	1/15,000 s.f.
11. Work-Only Artists' Studio.	Y	Y	Y	Y	1 per 350 s.f.	1/15,000 s.f.
12. Co-working Space.	Y	Y	Y	Y	1 per 350 s.f.	1/15,000 s.f.
13. Retail Store or Shop for Sale of Custom Work or Articles Made on the Premises.	Y	Y	Y	Y	1 per 350 s.f.	1/15,000 s.f.
E. OFFICE USES						
1. Business, professional, or government office	Y	Y	Y	Y	1 per 350 s.f.	1/15,000 s.f.
2. Bank and other financial institution	CDB	CDB	CDB	CDB	1 per 350 s.f.	1/15,000 s.f.
3. Neighborhood Medical Office	Y	Y	Y	Y	1 per 350 s.f.	1/15,000 s.f.
4. Medical Office	CDB	CDB	CDB	CDB	1 per 350 s.f.	1/15,000 s.f.
5. Clinic	CDB	CDB	CDB	CDB	1 per 350 s.f.	1/15,000 s.f.
F. RETAIL AND SERVICE USES						

	Medford Square District					
	MS-1	MS-2	MS-3	MS-4	PC ⁵	LC
1. Retail sales	Y	Y	Y	Y	1 per 350 s.f.	1/15,000 s.f.
2. Convenience retail	Y	Y	Y	Y	1 per 500 s.f.	1/15,000 s.f.
3. Neighborhood retail	Y	Y	Y	Y	1 per 750 s.f.	1/15,000 s.f.
4. Drive through retail sales and consumer service	N	N	N	N	1 per 350 s.f.	1/15,000 s.f.
5. Consumer service establishment	Y	Y	Y	Y	1 per 350 s.f.	1/50,000 s.f.
6. Body art establishment	Y	Y	Y	Y	1 per 850 s.f.	1/15,000 s.f.
7. Adult Use Marijuana Establishment — Cultivation	N	N	N	N	1 per 350 s.f.	1/50,000 s.f.
8. Adult Use Marijuana Establishment — Manufacture and processing	N	N	N	N	1 per 350 s.f.	1/50,000 s.f.
9. Adult Use Marijuana Establishment — Retail	N	N	N	N	1 per 350 s.f.	1/15,000 s.f.
10. Adult Use Marijuana Establishment — Independent laboratory	N	N	N	N	1 per 350 s.f.	1/15,000 s.f.
11. Doggy Daycare	N	N	N	N		
G. EATING, DRINKING, AND ENTERTAINMENT ESTABLISHMENTS						
1. Eating place, without drive through	Y	Y	Y	Y	1 per 350 s.f.	1/50,000 s.f.
2. Eating place, with drive through	N	N	N	N	1 per 350 s.f.	1/15,000 s.f.

	Medford Square District					
	MS-1	MS-2	MS-3	MS-4	PC ⁵	LC
3. Neighborhood Café	Y	Y	Y	Y	1 per 350 s.f.	1/50,000 s.f.
H. MOTOR VEHICLE RELATED USES						
1. Motor vehicle light service station	N	N	N	N	1 per 350 s.f.	1/50,000 s.f.
2. Motor vehicle repair establishment	N	N	N	N	1 per 350 s.f.	1/50,000 s.f.
3. Motor vehicle sales or rental of new vehicles only, accessory storage entirely within enclosed structure	N	N	N	N	1 per 1,040 s.f.	1/50,000 s.f.
4. Outdoor motor vehicle sales and storage accessory to H.3	N	N	N	N	NA	NA
5. Motor vehicle sales and storage, outdoors	N	N	N	N	NA	NA
6. Class II used motor vehicle sales	N	N	N	N	NA	NA
7. Motor vehicle wash within enclosed structure	N	N	N	N	1 per 350 s.f.	1/50,000 s.f.
I. MISCELLANEOUS COMMERCIAL USES						
1. Parking area or garage not accessory to permitted principal use	N	CDB ⁶	CDB	CDB	N/A	N/A
2. Parking area or garage accessory to a principal use which is on the same lot as a conforming principal use	Y	Y	Y	Y	NA	NA
3. Parking area or garage accessory to a principal use which is within 500 feet of a conforming principal use but not necessarily in the same district	Y	Y	Y	Y	NA	NA

	Medford Square District					
	MS-1	MS-2	MS-3	MS-4	PC ⁵	LC
4. Parking area or garage accessory to a principal use which is on the same lot as a nonconforming principal use	Y	Y	Y	Y	NA	NA
5. Parking area or garage accessory to a principal use which is within 500 feet of a conforming principal use in the same MUZ district ³	N	N	N	N	NA	NA
6. Municipal Parking area or garage as a principal use.	N	Y	N	Y	NA	NA
7. Open Storage	N	N	N	N	1 per 1,400 s.f.	1/15,000 s.f.
8. Moving of land	N	N	N	N	NA	NA
9. Radio and television tower	N	N	N	N	NA	NA
10. Solar energy system	Y	Y	Y	Y	NA	NA
J. WHOLESALE, TRANSPORTATION, INDUSTRIAL USES						
1. Fuel and ice sales	N	N	N	N	1 per 1,400 s.f.	1/50,000 s.f.
2. Motor freight terminal	N	N	N	N	NA	NA
3. Printing and publishing	N	N	N	N	1 per 1,040 s.f.	1/50,000 s.f.
4. Railroad right-of-way	Y	Y	Y	Y	NA	NA
5. Manufacturing	N	N	N	N	1 per 2 employees	1/50,000 s.f.

	Medford Square District					
	MS-1	MS-2	MS-3	MS-4	PC ⁵	LC
6. Research and testing laboratory	N	N	CDB	N	1 per 2 employees	1/50,000 s.f.
7. Plumbing or carpentry shop, and other similar service or repair shops	N	N	N	N	1 per 350 s.f.	1/15,000 s.f.
8. Wholesale bakery or food processing plant	N	N	N	N	1 per 2 employees	1/15,000 s.f.
9. Wholesale laundry, cleaner, dyer or similar use	N	N	N	N	1 per 1,040 s.f.	1/50,000 s.f.
10. Warehouse, Wholesale establishment	N	N	N	N	1 per 1,400 s.f.	1/15,000 s.f.
11. Mini or self-storage warehouse	N	N	N	N	1 per 1,400 s.f.	1/15,000 s.f.
12. Distillery or winery	Y	Y	Y	Y	1 per 350 s.f.	1/15,000 s.f.
13. Food production facility ⁷	Y	Y	Y	Y	1 per 2 employees	1/50,000 s.f.
14. Life science facility	N	N	N	N	1 per 2 employees	1/50,000 s.f.
15. Manufacturing, Light ⁷	Y	Y	Y	Y	1 per 2 employees	1/50,000 s.f.
16. Maker space	Y	Y	Y	Y	1 per 2 employees	1/50,000 s.f.

	Medford Square District					
	MS-1	MS-2	MS-3	MS-4	PC ⁵	LC
17. Shared-use kitchen	CDB	CDB	CDB	CDB	1 per 1,000 s.f.	1/15,000 s.f.
K. ACCESSORY USES						
1. Accessory Dwelling Units (see §94-8.2)	N	N	N	N	Per §94-8.2	NA
2. Home occupation (see § 94-3.4)					1 per 350 s.f.	NA
As of right	Y	Y	Y	Y		
By special permit	Y	Y	Y	Y	1 per 350 s.f.	NA
3. Accessory child care center or school aged child care program	Y	Y	Y	Y	1 per 2 employees	
4. Family day care home	Y	Y	Y	Y	1 per 2 employees	NA
5. Family day care home, large	Y	Y	Y	Y	1 per 2 employees	NA
6. Adult day care home	CDB	CDB	CDB	CDB	1 per 2 employees	NA
7. Renting of one or two rooms without separate cooking facilities to lodgers within a dwelling unit to one or two total lodgers	Y	Y	Y	Y	1 per Guestroom	NA
8. Noncommercial greenhouse, tool shed, or similar accessory structure	N	N	N	N	NA	NA
9. Swimming pool	Y	Y	Y	Y	NA	NA

	Medford Square District					
	MS-1	MS-2	MS-3	MS-4	PC ⁵	LC
10. Scientific research and development, as provided at section 94-3.3.3.1	Y	Y	Y	Y	NA	NA
11. Keno	CC	CC	CC	CC	NA	NA
12. Open storage	N	N	N	N	NA	NA
13. Heavy repair operations	N	N	N	N	1 per 1,400 s.f.	1/15,000 s.f.
L. OTHER PRINCIPAL USES						
1. Mixed-Use community	N	N	N	N		
2. Mixed-Use development	Y	Y	Y	Y		

Some uses in this table may be subject to Site Plan Review. For more information see § 94-11.7.2

Notes:

¹ For Breweries operating with seven barrels or under - Y.
For Breweries operating with more than seven barrels - BA.

³ Measured to the closest point of the structure.

⁴ Incentives for alternative residential parking requirements, except in the MSD.

Affordable housing units	.5 per Dwelling Unit
Located within ½ mile of high-frequency transit	.8 per Dwelling Unit

Incentives for residential parking requirements within the MSD: The minimum parking requirement can be reduced to 0.8 per dwelling unit by meeting the requirements in Section 94-9.7.9 Reductions to parking space requirements.

⁵ Notwithstanding the above tables, nonresidential uses with 5,000 square feet or less of gross leasable floor area exempt from any minimum.

⁶ Parking as a principal use is only permitted north of High Street, between Hillside Ave. and Forest St.

⁷ Five thousand (5,000) or less Gross Floor Area (GFA) – Y.
More than five thousand (5,000) GFA – CDB

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Amend Section 94-12.0 Definitions

Building Height: The vertical distance measured from the uniform finished grade to the highest point of the roof surface for flat roofs; to the deck line of mansard roofs, and to the average height between the highest eaves and ridge for gable, hip and gambrel roofs. Where a building is located on sloping terrain the height shall be measured from the average ground level of the grade at the building wall. Average ground level shall be determined by locating the mean between the extreme upper and lower finished grades per building elevation.

Historic Conversion: The conversion of an existing structure, a minimum of seventy-five (75) years old, originally designed for one (1) or two (2) units, to a multi-unit dwelling.

Multiplex: A residential building that contains four (4), five (5), or six (6) primary dwelling units on one (1) lot. In order to qualify as a multiplex, at least one (1) dwelling unit is located entirely or partially above another. Multiple units built side-by-side would generally be considered a townhouse or a semi-detached house.

Pervious Surface: A surface that allows water to infiltrate the soil beneath it. Also known as permeable surface.

Open Space, Landscaped: Open space designed and planted with trees, shrubs, ground cover and grass. Such space may not include lot area used for parking, loading, access drives, other areas with hard surfaces, or usable open space.

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Section 94-9.7 MEDFORD SQUARE DISTRICT

94-9.7.1 Purpose

The purpose of the Medford Square District (MSD) is to allow a mix of uses, including residential, multifamily, and commercial, to meet the following goals:

1. Wider variety of uses and building types to support jobs and economic development near established residential neighborhoods, providing options for living within walking distance of jobs, goods, and services.
2. Mixed-use, multifamily, and commercial uses at a density appropriate to the historic walkable, economic centers.
3. Development standards to buffer abutting neighborhoods from the higher intensity of uses and reinforce the identity of the Square as a local and regional destination.

94-9.7.2 Applicability

The MSD replaces the existing zoning districts and is shown on the Zoning Map, City of Medford, Massachusetts, as amended. An applicant may develop within this district in accordance with the provisions of Section 94-9.7 and other relevant sections of the Zoning Ordinance.

1. The MSD is comprised of the following subdistricts:
 - a. *Medford Square 1.* The Medford Square 1 Subdistrict allows a mix of residential and commercial uses at a lower scale of building size and massing.
 - b. *Medford Square 2.* The Medford Square 2 Subdistrict allows a mix of residential and commercial uses at a medium scale of building size and massing.
 - c. *Medford Square 3.* The Medford Square 3 Subdistrict allows a mix of residential and commercial uses at a medium-high scale of building size and massing.
 - d. *Medford Square 4.* The Medford Square 4 Subdistrict allows a mix of residential and commercial uses at a higher scale of building size and massing.

94-9.7.3 Dimensional Requirements.

1. The following dimensional requirements apply to the MSD.

Table 9.7-1: Table of Dimensional Requirements for the MSD

	Medford Square District			
	MS-1	MS-2	MS-3	MS-4
Lot Area sf (Min)	3,000	3,000	4,000	4,000
Frontage (Min)	30ft	40ft	40ft	40ft
Façade Build Out (Min)	80%	80%	80%	80%
Active Ground Floor (Min)	60%	60%	60%	60%
Historical Conversion (Max) ¹	Y	Y	Y	Y
Height				
Max Base Height.				
Stories	4 ²	5 ²	7 ²	8
Feet	50 ²	62 ²	86 ²	98
Max Incentive Height (Stories)				
Stories	+1	+2	+2	+5
Feet (total height)	62	86 ²	110 ²	146
Setbacks (ft)³				
Front (Min/Max)	0/20	0/20	0/20	0/20
Side	0	0	0	0
Rear	0	0	0	0
Stormwater and Landscaping				
Building Coverage (Max)	80% ⁴	80% ⁴	90% ⁴	90% ⁴
Green Score: ⁵ Minimum	20	20	20	20
Green Score: ⁵ Ideal	30	30	30	30
Pervious Surface (Min)	20%	20%	10%	10%
Open Space Landscape (Min)	15%	15%	10%	10%

Notes:

¹ The maximum permissible number of dwelling units is determined by dividing the Gross Floor Area of the existing principal structure by six hundred (600) sqft. The size of each individual unit is subject to the requirements of the Building Code. Additions and expansions to the existing building shall not increase the number of units allowed.

² Along the south side of High Street: Within the MS-1, MS-2, and MS-3 subdistricts, the maximum height is limited to four (4) stories [fifty (50) feet]. An additional fifth (5th) and sixth (6th) story, if allowed in the Table of Dimensional Requirements (Table 9.7-1) must be stepped back a minimum of ten (10) feet. After a distance of 30 feet from the lot line along High Street, the maximum height reverts to the requirements of the subdistrict, as set forth in the Table of Dimensional Requirements (Table 9.7-1). Along the north side of High Street: Any incentive stories must be stepped back a minimum of ten (10) feet from the front lot line.

	Medford Square District			
	MS-1	MS-2	MS-3	MS-4
³ For additional standards and waivers for setbacks, see 94-9.7.3.2 and 94-9.7.4.2. Section 94-4.2.6 does not apply to any development within the MSD.				
⁴ The Maximum Building Coverage can be increased to one hundred (100) percent if the development achieves the minimum Green Score.				
⁵ The Green Score only applies to the construction of any new principal building or major renovation that:				
a) is located within the FEMA National Flood Hazard Layers; or b) requires Site Plan Review.				
In those cases, Pervious Surface requirement does not apply.				

2. The following additional dimensional requirements apply to the MSD.

- a. *Front Setbacks.* The building façade for new construction shall be set back from the lot line at a distance sufficient to create a twelve (12) foot sidewalk in conjunction with an existing City sidewalk. A maximum setback of twenty (20) feet is allowed to create an active public plaza.
- b. *Side and Rear Setbacks.* If the proposed development is adjacent to a residential district or an existing lot with a residential use of four (4) units or fewer, the applicant shall provide a landscaped buffer of at least ten (10) feet from the lot line. The property owner shall maintain the buffer and landscaping.
- c. *Height Transition to Adjacent Residential Districts.* For any lot within the MSD that abuts a residential district (as defined by Section 94-2.1), a height stepback is required along the side or rear lot line that directly abuts the residential district. The height stepback is calculated by a forty-five (45) degree angle beginning at the third floor and extending to the highest floor of the building in the MSD. The fourth floor and above shall not break the plane of that forty-five (45) degree angle.
- d. *Setbacks for Infill Lots.* If the adjacent buildings are set back more than twenty (20) feet from the front lot line, infill buildings may either comply with the requirements of Table 9.7-1: Table of Dimensional Requirements for the MSD or match the setback line of the adjacent building closest to the front lot line to provide consistency along the street. The deeper setback area shall be either hardscaped or landscaped to provide a pedestrian-oriented amenity.
- e. *Multi-Building Lots.* In the MSD, lots may have more than one (1) principal building.
- f. *Ground Floor Active Frontage.* Active uses are required on the ground floor of any building with its principal façade parallel to Salem Street, High Street, Riverside

Avenue, and Clippership Drive (in the MSD) are subject to the Active Frontage percentages set forth in Table 9.7.-1 Table of Dimensional Requirements for the MSD. Active uses include retail, restaurants, cafés, personal services, other active commercial uses, publicly accessible office or residential lobbies, and active building amenity spaces (e.g., gym, residential common space). Where active commercial uses are not feasible, the following may be substituted: residential stoops; a setback of landscaped open space or public space with seating; public art, such as a mural or sculpture; or any other use that provides an engaging ground floor for pedestrian activity.

94-9.7.4 Waivers.

The following waivers are available to the Site Plan Review or Special Permit Granting Authority for projects within the MSD, upon a finding that such waiver would not cause substantial detriment to the neighborhood.

1. **Height Waiver.** The limitation on the height of buildings shall not apply to chimneys, ventilators, towers, silos, spires, or other ornamental features of buildings, which features are in no way used for living purposes and do not constitute more than twenty-five (25) percent of the ground floor area of the building.
2. **Height Waiver: Energy-Efficiency.** The Site Plan Review Authority or Special Permit Granting Authority may waive the height and setbacks in 94-9.7.3 Dimensional Standards to accommodate the installation of solar photovoltaic, solar thermal, living, and other eco-roofs, energy storage, and air-source heat pump equipment. Such installations shall not create a significant detriment to abutters in terms of noise or shadow and shall be appropriately integrated into the architecture of the building and the layout of the site. The installations shall not provide additional habitable space within the development.
3. **Height Stepback Waiver.** If a building is subject to a front stepback and rear or side stepbacks, the Community Development Board may waive the strict dimensional requirement of any of the stepbacks, provided that priority is given to retaining the stepback(s) in 94-9.7.3.2.c Height Transition to Adjacent Residential Districts.
4. **Setback Waiver: Drop-off zone.** The required setback distances may be waived to allow for a cut-out along the curb for loading and short-term parking for deliveries or drop-off/pick-up zones. Such a cut-out shall be coordinated with City staff.
5. **Setback Waiver: Waterways Act.** The required setback distances may also be waived to allow a development to meet the requirements of MGL Chapter 91.
6. **Eligible Historic Buildings.** The Community Development Board may, by special permit, waive the following requirements to incentivize the reuse of eligible historic structures.
 - a. **Dimensional Standards.** Structures and sites determined to be an eligible historic building shall be exempt from one (1) or more of the following dimensional requirements: lot size, frontage, building coverage, green score, pervious surface,

and open space, landscaped requirements, provided that the exterior is rehabilitated to (i) the Secretary of the Interior's Standards for the Treatment of Historic Properties or (ii) as approved by the Medford Historic Commission and Community Development Board after a public hearing. If the applicant and the Community Development Board agree that the Secretary of the Interior's Standards for the Treatment of Historic Properties are inappropriate for the proposed project, then the Medford Historical Commission shall participate in a joint public hearing with the Community Development Board and provide an advisory opinion on the appropriateness of the proposed changes within fourteen (14) days of the hearing.

- b. *Parking Waiver.* A structure or site determined to be an eligible historic building shall be exempt from all use-based parking space requirements (listed in Section 94-3.2 Table of Use Regulations Table A) provided that the exterior is rehabilitated to the Secretary of the Interior's Standards for the Treatment of Historic Properties, or as approved by the Medford Historic Commission and Community Development Board, as noted in 94-9.7.4.6a.
- c. *Definition of Eligible Historic Building.* For the purposes of this section, an "Eligible Historic Building" is any building or structure that satisfies one (1) or more of the following criteria:
 - i. Listed on the National Register of Historic Places, either individually listed or designated as a contributing structure in a National Register Historic District; or
 - ii. Listed on the State Register of Historic Places; or
 - iii. Has been designated by the Medford Historical Commission as a historically significant building or structure, following a finding by the Commission that such building or structure:
 - 1. Is associated with one (1) or more historical persons or events, or with the cultural, economic, social or political history of the Town or Commonwealth; or
 - 2. Possesses architectural value or significance in terms of period, style, method of construction, or association with a historically prominent architect or builder, either by itself or in conjunction with a group of buildings or structures.
- d. These waivers apply to the existing gross floor area of the eligible historic building. Any addition, expansion, or new construction that increases the gross floor area of the structure shall not benefit from these waivers.
- e. *Effect of Ineligibility Determination.* If the Medford Historical Commission determines that a building or structure does not qualify as an Eligible Historic

Building, such building or structure shall not be subject to the City's demolition review process.

94-9.7.5 Use Standards.

1. *Historic Conversion.*

- a. No new dwelling unit created by the conversion of an existing dwelling into a greater number of units or by addition or enlargement of an existing dwelling shall be permitted unless the requirements of minimum lot area, maximum building coverage, and minimum pervious surface requirements of the district in which the structure is located are satisfied after the conversion or enlargement.
- b. The required setbacks shall be those of the structure existing at the time of the conversion. However, any construction occurring outside the limits of the existing structure shall be subject to the setback requirements of the district in which the structure is located.
- c. The maximum height shall be that height permitted in the district in which the structure is located, or the existing building height, whichever is greater.
- d. Open space requirement shall be as required in the district in which the structure is located.
- e. Off-street parking shall be provided as required in Section 94-3.2 Table of Use Regulations (Table A).
- f. There shall not be any changes to the exterior of the structure other than those required by building code.
- g. Each unit shall have an independent entrance directly from outside the building or through a common vestibule. Where feasible, new additional independent entrances accessed directly from outside the building shall not be located on any building wall facing a street.
- h. Fire escapes and outside stairways leading to a second or higher floor shall, where feasible, be located on the rear of the building and shall not be located on any building wall facing a street.

94-9.7.6 Development Incentives

In exchange for incorporating certain provisions that further the City's goals for affordability, economic development, environmental sustainability, and climate resiliency, Applicants may receive Development Incentive Bonuses that allow for additional stories beyond the base number of stories that are allowed as of right under Table 9.7-1: Table of Dimensional Requirements for the MSD. However, the total number of stories is limited to the maximum number of stories allowed in each subdistrict, as shown in Table 9.7-1: Table of Dimensional Requirements for the MSD. Additional stories shall comply with any setback, stepback, or other dimensional

requirements and the development and design standards in 94-9.7.3 Dimensional Requirements and 94-9.7.8 Development Standards.

Table 9.7-2: Table of Development Incentive Bonuses for the Medford Square District (MSD).

Table of Development Incentive Bonuses.						
Incentive 1: Affordability						
Incentive 1A: Deeper Affordability:						
	# of Lots or Units in Proposed Project	Required Minimum/Total Percentage of Affordable Units at 80% AMI	For One Additional Floor		For Two Additional Floors	
			Minimum Percentage of Affordable Units at 80% AMI	Minimum Percentage of Affordable Units at 65% AMI	Minimum Percentage of Affordable Units at 80% AMI	Minimum Percentage of Affordable Units at 65% AMI
1	10-24	10%	8%	2%	5%	5%
2	25-49	13%	8%	5%	6%	7%
3	50 +	15%	10%	5%	8%	7%
Incentive 1B: More Affordable Units:						
	# of Lots or Units in Proposed Project	Required Minimum Percentage of Affordable Units at 80% AMI	For One Additional Floor		For Two Additional Floors	
			Additional Percentage of Affordable Units at 80% AMI	Total Percentage of Affordable Units at 80% AMI	Additional Percentage of Affordable Units at 80% AMI	Total Percentage of Affordable Units at 80% AMI
1	10-24	10%	3%	13%	5%	15%
2	25-49	13%	3%	16%	5%	18%
3	50 +	15%	3%	18%	5%	20%
Incentive 2: Community Amenities (privately maintained)						
Indoor pedestrian seating or outdoor pedestrian plaza of at least three hundred (300) square feet and accessible to the public during business hours.					One (1) additional half story	
One of the following neighborhood open spaces: • Pocket Park • Garden • Playground • Skate Park					One (1) additional half-story	
The development solar installation provides fifty (50) percent of its output in the form of electricity or net metering credits to community-shared solar programs, low-income solar programs and municipal or other governmental entity owned solar programs.					One (1) additional story	

Table of Development Incentive Bonuses.

The development makes at least twenty (20) percent or twenty (20) spaces, whichever is greater of its parking space available to the public, whether paid or shared with nearby developments. This incentive covers accessory structured parking only.	One (1) additional half story
Incentive 3: Community Amenities (publicly maintained)	
Streetscape Improvements along a public street. Such improvements may include one or more of the following: street trees, street furniture (benches, trash/recycling receptacles, bicycle racks), and/or pedestrian-scale lighting. The Engineering Division shall provide the standards for tree plantings, street furniture, and lighting to create a consistent treatment on the public sidewalk. The improvement shall be limited to the frontage of the lot or lots that are the subject of the application.	One (1) additional half-story
Incentive 4: Vibrant Neighborhoods	
Parking is concealed below grade or within a building structure.	One (1) additional half-story
The development project provides a minimum of fifty (50) percent or the ground floor at rents no less than fifteen (15) percent below market for a minimum tenancy of three (3) years to qualified nonresidential tenants [nonprofits or local businesses under ten (10) employees]. Market rent shall be first determined by comparing the base rents of other commercial ground floor leases in the same project and if none, then comparing base rents for comparable commercial space in the City of Medford as found on recognized listing services such as MLS and LoopNet. Evidence of the manner in which market rent was determined shall be provided to the Office of Planning, Development, and Sustainability.	One (1) additional half-story
A rehabilitation project maintains the pre-construction rent for existing ground-floor tenants for two (2) years after the post-construction Certificate of Occupancy has been granted.	One (1) additional half-story
Choose Either:	
2. A new development rehabilitates an eligible historic building, or integrates its historic façade(s) visible from a public right-of-way within the new development, provided that the building/façades are rehabilitated to the Secretary of the Interior's Standards for the Treatment of Historic Properties or the standard as described in 94-9.7.4.6a; or	For a: One (1) additional story
a. A new development rehabilitates the principal street-facing façade of an eligible historic building, or its key architectural elements, provided that the façade or architectural elements are rehabilitated to the Secretary	For b: One (1) additional half-story

Table of Development Incentive Bonuses.	
of the Interior's Standards for the Treatment of Historic Properties or the standard as described in 94-9.7.4.6a.	
Incentive 5: Environmental Resilience	
The development project meets the Ideal Green Score.	One (1) additional half story
The development project is certifiable as LEED Platinum or equivalent standard.	One (1) additional half-story

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94-9.7.7 Design Guidelines and Applicability of Development Standards

1. ***Design Guidelines.*** The Community Development Board may adopt and amend, by simple majority vote, Design Standards which shall be applicable to all rehabilitation, redevelopment, or new construction submitted under this MSD. Such Design Guidelines may address the scale and proportions of building, the alignment, width, and grade of streets and sidewalks, the type and location of infrastructure, the location of building and garage entrances, off-street parking, the protection of significant natural site features, the location and design of on-site open spaces, exterior signs, and buffering in relation to adjacent properties. Design Guidelines may contain graphics illustrating a particular standard or definition to make such standard or definition clear and understandable.
2. ***Applicability of Development Standards.*** Section 94-9.7.8 Development Standards shall apply to all projects submitted under this MSD. These standards, along with any Design Guidelines adopted under paragraph 1, above, are components of the Site Plan Review and Special Permit processes as defined in this Zoning Ordinance.

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94-9.7.8 Development Standards

1. *Site Standards.*

- a. *Connections.* Sidewalks shall provide direct connections among building entrances, the public sidewalk (if applicable), bicycle storage, and parking.
- b. *Sidewalk materials.* Sidewalks shall be continuous across driveways, using the same materials and grade and level as the sidewalk on either side of the driveway. Sidewalk materials shall follow standards set by the City's Department of Engineering.
- c. *Vehicular access.* Where feasible, curb cuts shall be minimized, and shared driveways encouraged. Curb cuts for one-way access shall be no more than twelve (12) feet in width, while curb cuts for two-way traffic shall be no more than twenty (20) feet in width. Designated drop-off and pick-up areas for deliveries and ride-sharing companies should be incorporated to reduce conflicts associated with double-parking and blocking of bicycle lanes, crosswalks, and bus stops. These areas should be clearly marked with signs and conveniently located near entrances to buildings and major destinations.
- d. *Circulation.* Parking and circulation on the site shall be organized to reduce the amount of impervious surface. Where possible, parking and loading areas shall be connected to minimize curb cuts onto public rights-of-way.
- e. *Open space.* Open Space shall be contiguous, to the greatest extent feasible, and connected to the pedestrian network. Isolated pockets of space that cannot be accessed for maintenance are prohibited. Open Space may be either private or public. Public open space shall be in the front or side setback. A minimum one-third (1/3) of the required open space, permeable, shall be landscaped.
- f. *Screening for surface parking.* Surface parking adjacent to a public sidewalk shall be screened by a landscaped buffer of sufficient width to allow the healthy establishment of trees, shrubs, and perennials, but no less than six (6) feet. The buffer may include a fence or wall of no more than three (3) feet in height unless there is a significant grade change between the parking and the sidewalk. Chain-link and vinyl fences are prohibited.
- g. *Parking materials.* The parking surface may be concrete, asphalt, decomposed granite, bricks, or pavers, including pervious materials but not including grass or soil not contained within a paver or other structure.
- h. *Plantings.* Plantings shall include species that are native or adapted to the region. Plants on the Massachusetts Prohibited Plant List, as may be amended, shall be prohibited.
- i. *Lighting.* Light levels shall meet or exceed the minimum design guidelines defined by the Illuminating Engineering Society of North America (IESNA) and shall

provide the illumination necessary for safety and convenience while preventing glare and overspill onto adjoining properties and reducing the amount of skyglow.

- j. *Mechanicals*. Mechanical equipment at ground level shall be screened by a combination of fencing and plantings. Rooftop mechanical equipment shall be screened if visible from a public right-of-way.
- k. *Dumpsters*. Dumpsters shall be screened by a combination of fencing and plantings. Dumpsters or other trash and recycling collection points located within the building are preferred.
- l. *Stormwater management*. Strategies that demonstrate the compliance of the construction activities and the proposed project with the most current versions of the Massachusetts Department of Environmental Protection Stormwater Management Standards, the Massachusetts Stormwater Handbook, Massachusetts Erosion Sediment and Control Guidelines, and the City of Medford's Stormwater Management Rules and Regulations. The applicant shall also provide an Operations and Management Plan for both the construction activities and ongoing post-construction maintenance and reporting requirements.

2. General Building Standards.

- a. *Position relative to the principal street*. The primary building shall have its principal façade and entrance facing the principal street.
- b. *Daylight Minimum*. New construction (which includes additions) shall be designed to minimize impacts on sunlight access for existing residential buildings in a residential district (as defined by Section 94-2.1). The goal of this standard is to protect the well-being of residents and preserve the energy efficiency of existing buildings.
 - i. This standard shall be applied to any new construction in the MSD subject to Site Plan Review.
 - ii. The minimum daylight standard applies to new construction that casts a shadow on one or more existing residential buildings located in a residential zoning district. Such existing buildings shall receive a minimum of two (2) hours of direct sunlight as calculated on February 21 and October 21.
 - iii. To demonstrate that this standard has been met, the applicant shall provide a shadow study as required by the Medford Site Plan Rules and Regulations as amended by the Community Development Board.
- c. *Entries*. Where feasible, entries shall be clearly defined and linked to a paved pedestrian network that includes the public sidewalk.

3. *Multiple buildings on a lot.*

- a. *Location of Mixed Uses.* For a mixed-use development, uses may be mixed within the buildings or in separate buildings.
- b. *Orientation.* The orientation of multiple buildings on a lot should reinforce the relationships among the buildings. All building façade(s) shall be treated with the same care and attention in terms of entries, fenestration, and materials.
- c. *Position relative to the street.* Building(s) adjacent to a public street shall have a pedestrian entry facing that public street.

4. *Mixed-use development.*

- a. *Access.* In a mixed-use building, access to and egress from the residential component shall be clearly differentiated from access to other uses. Such differentiation may occur by using separate entrances or egresses from the building or within a lobby space shared among different uses.
- b. *Connections.* Paved pedestrian access from the residential component shall be provided to residential parking and amenities and to the public sidewalk, as applicable. Paved surfaces may include pervious paving materials.
- c. *Material Storage.* Materials for non-residential uses shall be stored inside or under cover and shall not be accessible to residents of the development.
- d. *Shared Outdoor Space.* Multi-family housing and mixed-use development shall have common outdoor space that all residents can access. Such space may be in any combination of ground floor, courtyard, rooftop, or terrace. All outdoor space shall count towards the project's minimum Open Space requirement.

5. *Corner Lots.* A building on a corner lot shall indicate a primary entrance either along one (1) of the street-facing façades or on the primary corner as an entrance serving both streets.

- a. *Connections.* Such entries shall be connected by a paved surface to the public sidewalk, if applicable.
- b. *Façade Design.* All façades visible from a public right-of-way shall be treated with similar care and attention in terms of entries, fenestration, and materials.
- c. *Fire Exits.* Exterior emergency staircases and emergency-only exit doors serving more than one (1) story shall not be located on either of the street-facing façades. If the only feasible location for emergency-only exit doors is on a street-facing façade, the door shall be inset into the façade so that outward-swinging doors do not obstruct pedestrian access.

6. **Parking.** Parking shall be subordinate in design and location to the principal building façade.
- a. *Surface parking.* Surface parking shall be located to the rear or side of the principal building. Parking shall not be in the setback between the building and any lot line adjacent to the public right-of-way.
 - b. *Integrated garages.* The principal pedestrian entry into the building shall be more prominent in design and placement than the vehicular entry into the garage.
 - c. *Parking structures.* Above-grade parking structures (stand-alone or within a residential, commercial, or mixed-use building) shall be subordinate in design and placement to the primary uses. Ground-floor parking levels shall be wrapped with active uses such as commercial/retail, community spaces, or residential amenity spaces. Exposed facades of upper parking levels shall incorporate design treatments such as public art installations, vertical planting, or other architectural features for visual interest and to disguise the parking uses within. Vehicular openings shall have doors.
 - d. *Electrical Vehicle (EV) charging spaces.* One (1) EV charging space is required for every twenty (20) parking spaces, rounded up to the next highest number of EV stations.
7. **Waivers.** Upon the request of the Applicant, the Site Plan Review Authority may waive the requirements of 94-9.7.8 Development Standards in the interests of design flexibility and overall project quality and upon a finding of consistency of such variation with the overall purpose and objectives of the MSD.

94-9.7.9 Reductions to parking space requirements. This section supersedes 94-6.1.9 Shared Parking of the City of Medford Zoning Ordinance.

1. **Purpose.**
- a. To support the efficient use of land area for productive uses that contribute toward the City's tax base;
 - b. To help prevent land from being unnecessarily devoted to the parking of motor vehicles, and help preserve green space and other valuable ecological, historic and cultural resources;
 - c. To encourage the efficient use of existing parking resources;
 - d. To allow parking to be shared between uses on the same lot or between buildings on the same block when the actual demand for parking is less than the total number of spaces required by this Ordinance for each individual use;

- e. To help reduce stormwater management costs, water pollution and heat island effects; and
 - f. To improve walkability.
2. ***Residential Parking.*** The residential parking requirement may be reduced to 0.8 parking spaces per unit if:
- a. The development is an addition or expansion that increases the existing gross floor area of an eligible historic building, or
 - b. The development meets the following conditions:
 - i. Provide one (1) bicycle parking space per unit. A minimum of fifty (50) percent of the required bicycle spaces shall be covered or integrated into the structure of the building(s).
 - ii. Provide a loading zone for commercial vehicles.
 - iii. Provide a fifteen (15) minute pick-up/drop-off space.
 - iv. Join a local Transportation Management Association. The development shall pay a base membership fee on an annual level.
3. ***Dual Use for Mixed-Use Developments.*** Dual-use parking may be used for any mixed-use development that includes uses with parking demands peaking at different times of the day.
- a. The Table 9.7-3 provides the method for calculating dual use parking for buildings with more than one (1) use type within the same lot.

Table 9.7-3 Dual Use Parking Ratios

Use 1	Use 2	Sharing Factor
Residential	Office	0.7
Residential	Commercial	0.8
Residential	Lodging	0.9
Lodging	Commercial	0.75
Office	Commercial	0.8
Office	Lodging	0.7

- b. The parking required for any two (2) functions on a lot is calculated by multiplying the number of spaces required by the lesser of the two (2) uses by the appropriate ratio from the Table 9.7-3 and adding the result to the greater use parking requirement.
- c. Example: For a building with a Residential Use requiring one hundred (100) spaces and a Commercial Use requiring twenty (20) spaces, the twenty (20) spaces multiplied by the sharing factor of 0.8 would reduce the total requirement to one hundred (100) plus sixteen (16) spaces or one hundred and sixteen (116) spaces instead of one hundred and twenty (120) spaces.
- d. This reduction may be used in addition to other reductions in parking requirements.

94-9.7.10 Multi-Building Shared Parking

1. *Purpose and Intent.*

- a. To allow parking to be shared between buildings on the same block or within seven-hundred and fifty (750) feet of the building which they are to serve, when the actual demand for parking is less than the total number of spaces required by this Ordinance for each individual use.
- b. To allow development that cannot cost-effectively park itself on site to use parking at a municipal or private commercial parking facility.

2. *Applicability.* Shared parking is allowed by a special permit from the Community Development Board for any application in the MSD.

3. *Requirements for Shared Parking.*

- a. *Assigned Stalls.* Parking stalls that have been assigned to individual tenants or occupants shall not be eligible for shared parking.
- b. *Access.* Parking facilities are accessible during the required hours of usage.

4. *Distance.*

- a. Accessory parking facilities for residential uses shall be located within seven-hundred and fifty (750) feet of the building which they are to serve, measured along the access route with a safe walking path.
- b. Accessory parking facilities for nonresidential uses shall be located within one thousand (1,000) feet, measured along the access route with a safe walking path.
- c. The access route is measured from the front door of the building to the pedestrian access point at the parking facility.

5. ***Joint Use Agreement.*** The right of joint use of shared accessory parking shall be demonstrated through a binding agreement that is tied to the land or similar written instrument establishing the joint use. The binding agreement may restrict future changes to the use of the property. All agreements are subject to review and approval of the Community Development Board to have accessory parking reduced pursuant to this section.
6. ***Shared Parking Agreements.***
 - a. Shared parking requires a written agreement among all owners of record.
 - b. An attested copy of the agreement between the owners of record shall be submitted to the Building Department and approved by the Director of Planning, Development, and Sustainability in a form deemed acceptable by the City Solicitors Office prior to and as a condition of the issuance of a building Permit.
 - c. Revocation of an existing parking agreement will only be accepted if the required accessory parking spaces are provided in accordance with the standards for the district where each property is located.
 - d. Failure to maintain a Shared Parking Agreement is a violation of the Special Permit and may result in a fine and the revocation of certificates of occupancy.
7. ***Signage.*** The manager of shared parking facilities shall provide signage identifying the permitted users.